CHAPTER 45 State Public Service Commission

Parallel to the Union Public Service Commission (UPSC) at the Centre, there is a State Public Service Commission (SPSC) in each state. The same set of Articles (i.e., 315 to 323 in Part XIV) of the Constitution also deal with the composition, appointment and removal of members, power and functions and independence of a SPSC.

COMPOSITION

A State Public Service Commission consists of a chairman and other members appointed by the governor of the state. The Constitution does not specify the strength of the Commission but has left the matter to the discretion of the Governor. Further, no qualifications are prescribed for the commission's membership except that one-half of the members of the commission should be such persons who have held office for at least ten years either under the government of India or under the Government of a state. The Constitution also authorises the governor to determine the conditions of service of the chairman and members of the Commission. In addition, the Governor is authorised to make provisions with respect to the number of members of the staff of the Commission and their conditions of service.

The chairman and members of the Commission hold office for a term of six years or until they attain the age of 62 years[1], whichever is earlier (in the case of UPSC, the age limit is 65 years). However, they can relinquish their offices at any time by addressing their resignation to the governor.

The governor can appoint one of the members of the SPSC as an acting chairman in the following two circumstances[2]:

1. When the office of the chairman falls vacant; or
2. When the chairman is unable to perform his/her functions due to absence or some other reason.

The acting chairman functions till the person appointed as chairman enters on the duties of the office or till the chairman is able to resume his/her duties.

REMOVAL

Although the chairman and members of a SPSC are appointed by the governor, they can be removed only by the President (and not by the governor). The President can remove them on the same grounds and in the same manner as he/she can remove a chairman or a member of the UPSC. Thus, he/she can remove him/her under the following circumstances:

1. If he/she is adjudged an insolvent (i.e., has gone bankrupt); or
2. If he/she engages, during his/her term of office, in any paid employment outside the duties of his/her office; or
3. If he/she is, in the opinion of the President, unfit to continue in office by reason of infirmity of mind or body[3].

In addition to these, the President can also remove the chairman or any other member of the SPSC for misbehaviour. However, in this case, the President has to refer the matter to the Supreme Court for an